

preparation, or delay the trial, the court notes that the court has recently granted the motion to continue trial.

Accordingly, the motion is granted.

Defendant City of Lincoln shall file and serve the first amended answer by September 4, 2026.

8. S-CV-0055232 Cunningham, Laura v. Silverstein, Karina

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Advance Trial

Appearance of the parties is required on **August 25, 2026 at 8:30 a.m. in Department 32**. Department 32 is located at 10820 Justice Center Drive, Roseville, California 95678.

9. S-CV-0055382 Marx, Leroy S v. Q&D Construction

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Substitute Plaintiff

Proposed plaintiff and successor in interest Ashley Duskin's unopposed motion is granted. If a cause of action survives death of a party, on motion "the court shall allow" substitution by the decedent's personal representative or, if none, by the decedent's successor in interest. (Code Civ. Proc., §§ 377.31 [decedent's cause of action]; 377.41 [cause of action against a decedent].) A successor in interest is defined as "the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action." (Code Civ. Proc., § 377.11.) A person seeking to substitute into an action as a successor in interest for a deceased plaintiff must provide evidence in compliance with Code of Civil Procedure section 377.32(a).

Here, plaintiff's labor law claims are not abated by plaintiff's death and the declaration of Ashley Duskin meets the requirements of Section 377.32(a). The court finds Ashley Duskin is plaintiff Leroy S. Marx's successor in interest. Accordingly, Ashley Duskin is substituted into the case as the successor in interest for plaintiff Leroy S. Marx.